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Case Number: 24STCV22596 Hearing Date: September 28, 2026 Dept: 11

Final

Approval of Class Action Settlement

Department

SSC-11

PEREZ v. EMCORE CORPORATION

Case No.: 24STCV22596

Hearing: September 28, 2026

TENTATIVE

RULING

Grant.

BACKGROUND

This is a wage and hour class action. On September 4, 2024, Plaintiff filed a wage-and-hour class action lawsuit in the Superior Court of California, County of Los Angeles. The lawsuit alleged violations of: (a) Labor Code sections 510 and 1198 (unpaid overtime); (b) Labor Code sections 226.7 and 512(a) (unpaid meal period premiums); (c) Labor Code section 226.7 (unpaid rest period premiums); (d) Labor Code sections 1194 and 1197 (unpaid minimum wages); (e) Labor Code sections 201 and 202 (final wages not timely paid); (f) Labor Code section 226(a) (non-compliant wage statements); (g) Labor Code sections 2800 and 2802 (unreimbursed business expenses); and (h) Business & Professions

Code section 17200, et seq.

On October 29, 2024, Plaintiff filed a First Amended Complaint that removed the seven (7) causes of action, leaving only a cause of action for violation of Business and Professions Code section 17200, et seq.

On June 25, 2025, in line with the Settlement, Plaintiff filed the Operative Second Amended Complaint adjusting the “class” definition and reasserting the seven (7) causes of action that were removed by the First Amended Complaint.

Counsel represents that the parties engaged in investigation and discovery wherein: 1) Defendant produced documents relating to the policies, practices, and procedures regarding reimbursement of business expenses, paying nonexempt employees for all hours worked, and meal and rest breaks along with payroll, timekeeping, and operational policies; 2) Plaintiff reviewed time records, pay records, and information relating to the size and scope of the Class, as well as data enabling Plaintiff to understand the number of Workweeks; and 3) Plaintiff located and interviewed Class Members who worked for Defendant throughout the Class Period.

On June 17, 2025, the Parties attended mediation with the mediator Lisa Klerman that resulted in a settlement via a mediator’s proposal. A fully executed Settlement Agreement was filed with the Court on July 23, 2025 attached to the Declaration of Douglas Han (“Han Decl.”) ISO Preliminary Approval as Exhibit 2.

Preliminary Approval was granted on February 18, 2026. Notice was given to the Class Members as ordered. (See Declaration of Taylor Mitzner (“Mitzner Decl.”).)

Now before the Court is the motion for final approval of the settlement agreement.

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CLASS

DEFINITION AND ESSENTIAL TERMS OF SETTLEMENT AGREEMENT

The essential terms are as follows:

“Class” means all current and former hourly-paid or non-exempt employees of Defendant within the State of California at any time during the Class Period. (¶A(4))

“Class Period” means the period from September 4, 2020, through June 19, 2025. (¶A(11))

The Class Data contained information for two hundred nine (209) Class Members. (Mitzner Delc., ¶6.)

· Based

on a review of its records to date, Defendant estimates there are 210 Class Members who worked a total of approximately 27,210 Workweeks. (¶D.1) If it is determined that the number of Workweeks through the Class Period exceeds 7.5% or more of 27,210 (i.e., more than 29,251 Workweeks), then, at Defendant's election, either: (1) the Gross Settlement Amount shall increase proportionally over the 7.5% increase (i.e., if the number of Workweeks increases by 9.5%, then the Gross Settlement Amount will increase by 2%); or (2) the Class Period will end on the date that the number of Workweeks reaches 29,251 Workweeks. (¶H)

o

There are 208 Participating Class Members. (Mitzner Decl., ¶13.) After reviewing the Class Data, Phoenix determined that there are 27,142 Workweeks within the Class Period; thus, the Escalator Clause was NOT triggered. (Id. at ¶18.)

· The

Gross Settlement Amount (“GSA”) is \$435,000, non-reversionary. (¶C(1))

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The

Net Settlement Amount (“Net”) (\$247,500) is the GSA minus the following:

Up to \$145,000 (1/3 of GSA) for attorneys' fees (§C(2)a);

Up to \$25,000 for attorneys' costs (Ibid.);

Up to \$7,500 for a Service Payment to the class representative (§C(2)b);

Up to \$10,000 for costs of settlement administration (§C(2)c).

· Defendant

will separately pay any and all employer payroll taxes owed on the Wage Portions of the Individual Class Payments. (§C(1))

· No

Claim Requirement: The Administrator will disburse the entire Gross Settlement Amount without asking or requiring Participating Class Members to submit any claim as a condition of payment. (§C(1))

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Funding

of GSA: Defendant shall fund the Gross Settlement Amount and fund all employer payroll taxes owed on the Wage Portion of the Individual Class Payments by transmitting the funds to the Administrator no later than fourteen (14) calendar days from the Effective Date. (§D(2))

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Uncashed Settlement Checks: The Administrator will cancel all checks not cashed by the void date (within one hundred eighty (180) calendar days after the date of mailing). (§D(3)a.) For any Class Member whose settlement check is uncashed and cancelled after the void date, the Administrator shall transmit the funds represented by such checks to the California Controller's Unclaimed Property Fund in the name of the Class Member, thereby leaving no "unpaid residue" subject to the requirements of Code of Civil Procedure section 384, subdivision (b). (§D(3)c.)

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Scope of the Release: Effective on the date when Defendant fully funds the Gross Settlement Amount and funds all employer payroll taxes owed on the Wage Portion of the Individual Class Payments, Plaintiff, Class Members, and Class Counsel will release claims against all Released Parties as

follows: (¶E)

o Release by Participating Class Members: All Participating Class Members, on behalf of themselves and their former and present representatives, agents, attorneys, heirs, administrators, successors, and assigns, release the Released Parties from all claims that were alleged, or could have been alleged, based on the facts contained in the Operative Complaint and that occurred during the Class Period. (¶E(2)) The Released Class Claims includes: (i) Labor Code sections 510 and 1198 (unpaid overtime); (ii) Labor Code sections 226.7 and 512(a) (unpaid meal period premiums); (iii) Labor Code section 226.7 (unpaid rest period premiums); (iv) Labor Code sections 1194 and 1197 (unpaid minimum wages); (v) Labor Code sections 201 and 202 (final wages not timely paid); (vi) Labor Code section 226(a) (non-compliant wage statements); (vii) Labor Code sections 2800 and 2802 (unreimbursed business expenses); and (viii) all claims asserted through Business & Professions Code section 17200, et seq. arising out of the Labor Code violations referenced in the Operative Complaint, and any other applicable provisions of state law, including the applicable Industrial Welfare Commissions wage orders, based on the facts stated in the Operative Complaint.

(¶E(2)a.) The Participating Class Members do not release any other claims, including claims for vested benefits, wrongful termination, violation of the Fair Employment and Housing Act, unemployment insurance, disability, social security, workers' compensation, or claims based on facts occurring outside the Class Period. (¶E(2)b.)

o "Released Parties" means: Defendant and its past, present, and future owners, parents, and subsidiaries, and all of their current, former, and future officers, directors, members, managers, employees, consultants, partners, shareholders, joint venturers, agents, affiliates, predecessors, successors, assigns, accountants, insurers, reinsurers, and/or legal representatives. (¶A(30))

o Named

Plaintiff will additionally provide a general release and §1542 waiver. (¶E(1))

ANALYSIS

OF SETTLEMENT AGREEMENT

A.

Does

a presumption of fairness exist?

The Court preliminarily found in its Order on February 18, 2026 that the presumption of fairness should be applied. No facts have come to the Court's attention that would alter that preliminary conclusion. Accordingly, the settlement is entitled to a presumption of fairness as set forth in the preliminary approval order.

B. Is the settlement fair, adequate, and reasonable?

The settlement was preliminarily found to be fair, adequate and reasonable. Notice has now been given to the Class.

Reaction of the class members to the proposed settlement.

Number of class members: 209 (Mitzner Decl., ¶6.)

Number of notice packets mailed: 209 (Id. at ¶7.)

Number of undeliverable notices: 2 (Id. at ¶9.)

Number of opt-outs: 1 (Id. at ¶12.)

Number of objections: 0 (Id. at ¶11.)

Number of participating class members: 208 (Id. at ¶13.)

Average individual payment: \$1,204.47 (Id. at ¶15.)

Highest

estimated payment: \$2,329.04 (Ibid.)

The Court finds that the notice was

given as directed and conforms to due process requirements. Given the reactions of the Class Members to the proposed settlement and for the reasons set for in the Preliminary Approval order, the settlement is found to be fair, adequate, and reasonable.

C.

Attorney

Fees and Costs

Class Counsel, Justice Law Corporation, requests \$145,000 (33%) in fees and litigation costs and expenses in the amount of \$23,969.31 to Class Counsel. (Han Decl. ISO Final Approval, ¶¶8, 22.)

The Settlement provides for attorney's fees up

to \$145,000 (33%) and costs of \$25,000 (Settlement Agreement, ¶C.2.a). The class was provided notice of a maximum requested award amount of \$145,000 (1/3) attorney's fees up and \$25,000 for costs as requested awards and none objected. (Mitzner Decl., ¶11 and Exhibit A thereto.)

"Courts recognize two methods for calculating attorney fees in civil class actions: the lodestar/multiplier method and the percentage of recovery method." (Wershba at 254.) Here, class counsel requests attorney fees using the percentage method, as cross checked by lodestar.

The fee request represents

33% of the gross settlement amount which is the average generally awarded in class actions. See *In re Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 558, fn. 13 ("Empirical studies show that, regardless whether the percentage method or the lodestar method is used, fee awards in class actions average around one-third of the recovery.").

Counsel has provided the following

lodestar information:

BILLER

RATE

HOURS

TOTAL

Douglas Han

\$900

79.1

\$71,190.00

Shunt Tatavos-Gharajeh

\$800

72.7

\$58,160.00

Talia Lux

\$500

93.4

\$46,700.00

Total

245.2

\$176,050

(Han Decl. ISO Final Approval, ¶¶10-11,13 and
Exhibit 1 thereto.)

Counsel

has spent over 245.2 hours in connection with this litigation, resulting in a lodestar of \$176,050, which would require a negative multiplier to yield the requested fee amount. (Ibid.)

As for costs, class counsel has incurred costs of \$23,969.31. (Han Decl. ISO Final Approval, ¶12 and Exhibit 5 thereto.) Class Counsel is requesting \$23,969.31 in costs, which is less than the settlement cap of \$25,000. Further, a maximum cap of \$25,000 for attorney's costs was disclosed to class members who did not object. (Mitzner Decl., ¶11 and Exhibit A thereto.)

The costs in this case include, but are not limited to, filing and service fees (\$1,497.05), mediation (\$12,500), Case Anywhere costs, Expert Review and Analysis of Payroll Records (Berger Consulting Group) (\$6,705), and legal research (\$1,500). (Ibid.) The costs seem reasonable and necessary to litigation.

Therefore, the recommendation is to award \$145,000 (1/3) for fees and \$23,969.31 for litigation costs.

D.

Incentive

Award to Class Representative

The Settlement agreement provides for an incentive payment of up to \$7,500 to the named Plaintiff. (Settlement Agreement, ¶C.2.b.)

Plaintiff Perez's contributions to this litigation include, but are not limited to, spending over 49 hours on the following: obtaining counsel, meeting with counsel, gathering documents, reviewing documents, assisting with and reviewing discovery, answering questions, developing case strategy, providing witness information, remaining available for mediation session, and reviewing the settlement agreement. (Perez Decl., ¶¶4-9.)

Based

on the above, the recommendation is to award enhancement awards in the amount

of \$7,500 to Plaintiff.

E.

Claims

Administration Costs

The claims administrator requests \$8,000 for the costs of administering the settlement. (Mitzner Decl., ¶17.) This is less than the \$10,000 maximum amount estimated in the Settlement Agreement; (Settlement Agreement, ¶C.2.c); and disclosed in the notice to class members, to which there were no objections.

Based on all the work performed by the

Claims Administrator, the recommendation is to award costs in the requested amount of \$8,000.